

FL-25-001292 PENA VS PENA

County: stanislaus

Division: Family Law

Department: 11

Hearing date: 2026-08-19

Motion: Respondent's Request for Order re Strike Petition, etc.—HEARING REQUIRED. Proof of personal service of Petitioner is on file and demonstrates presumptively valid and timely notice. Petitioner did not file a Responsive Declaration or other written opposition. On April 10, 2026, both parties were ordered to serve Preliminary Declarations of Disclosure (PDD's) and to file proof of service of same within forty-five (45) days. (CMC Order, 4/10/26.) On April 22, 2026, the Court confirmed the prior CMC Order and reiterated that, as of that date, Petitioner was specifically directed to serve his PDD's within thirty (30) days given the failure to comply and lapse of time without compliance. (Amended Findings and Order After Hearing, 4/22/26, p. 2 of 2.) Respondent filed proof of service of her PDD's on December 12, 2025. As of this date, the Court's docket does reflect any proof of service as to Petitioner's PDD's and based on Respondent's declaration, the Court finds that Petitioner has failed to comply as ordered and within the time specified by the Court. That said, Respondent offers no authority—despite her represented status—that a party is entitled to move for terminating sanctions as a remedy for non-compliance with the disclosure duties. To the contrary, the Court's authority based on a party motion is set by statute and the remedies include a motion to compel response, a evidentiary or issue sanction, a waiver of the complying party's receipt of the non-complying party's PDD's, and/or monetary sanctions. (Fam. Code, § 2107(b)(1)-(3), (c); Hogoboom & King, Cal. Prac. Guide Family L. (TRG 2026), Ch. 11-B, § 11:95 et seq.) While Respondent requested evidentiary sanctions in the alternative, Respondent's declaration does not specify what matters within the scope of Petitioner's PDD's and the disclosure obligations that Respondent seeks. Also, no monetary sanctions were specifically sought and supported by a declaration from Respondent's counsel or otherwise as to the factual and legal basis for such monetary sanctions. (Fam. Code, § 2107(c).) Nevertheless, the Court, on its own motion, has the authority and discretion to address disobedience to the Court's orders and to impose monetary sanctions and non-monetary sanctions, up to and including terminating sanctions. Depending upon Petitioner's appearance and testimony, if any, at the hearing, the Court may elect to entertain sua sponte any or all of these sanctions but must first issue an Order to Show Cause to this effect. (Code Civ. Proc. , §§ 177.5 [monetary sanctions not to exceed \$1,500, payable to the court, for disobedience of court orders], 583.410, 583.420(a)(2) [discretionary dismissals for two year delay in prosecution]; Cal. Rules of Ct., rules 3.1340(a), 3.1342.) The following are the tentative ruling cases calendared before Judge J. Richard Distaso in Department #13: THERE ARE NO TENTATIVES. The following are the tentative ruling cases calendared before Judge Sarah Birmingham in Department #14: THERE ARE NO TENTATIVES. The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25:

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FL-25-001292 – PENA VS PENA

Respondent's Request for Order re Strike Petition, etc.—HEARING REQUIRED.

Proof of personal service of Petitioner is on file and demonstrates presumptively valid and timely notice. Petitioner did not file a Responsive Declaration or other written opposition.

On April 10, 2026, both parties were ordered to serve Preliminary Declarations of Disclosure (PDD's) and to file proof of service of same within forty-five (45) days. (CMC Order, 4/10/26.)

On April 22, 2026, the Court confirmed the prior CMC Order and reiterated that, as of that date, Petitioner was specifically directed to serve his PDD's within thirty (30) days given the failure to comply and lapse of time without compliance. (Amended Findings and Order After Hearing, 4/22/26, p. 2 of 2.)

Respondent filed proof of service of her PDD's on December 12, 2025. As of this date, the Court's docket does reflect any proof of service as to Petitioner's PDD's and based on Respondent's declaration, the Court finds that Petitioner has failed to comply as ordered and within the time specified by the Court.

That said, Respondent offers no authority—despite her represented status—that a party is entitled to move for terminating sanctions as a remedy for non-compliance with the disclosure duties. To the contrary, the Court's authority based on a party motion is set by statute and the remedies include a motion to compel response, a evidentiary or issue sanction, a waiver of the complying party's receipt of the non-complying party's PDD's, and/or monetary sanctions. (Fam. Code, § 2107(b)(1)-(3), (c); Hogoboom & King, Cal. Prac. Guide Family L. (TRG 2026), Ch. 11-B, § 11:95 et seq.) While Respondent requested evidentiary sanctions in the alternative, Respondent's declaration does not specify what matters within the scope of Petitioner's PDD's and the disclosure obligations that Respondent seeks. Also, no monetary sanctions were specifically sought and supported by a declaration from Respondent's counsel or otherwise as to the factual and legal basis for such monetary sanctions. (Fam. Code, § 2107(c).)

Nevertheless, the Court, on its own motion, has the authority and discretion to address disobedience to the Court's orders and to impose monetary sanctions and non-monetary sanctions, up to and including terminating sanctions. Depending upon Petitioner's appearance and testimony, if any, at the hearing, the Court may elect to entertain sua sponte any or all of these sanctions but must first issue an Order to Show Cause to this effect. (Code Civ. Proc. , §§ 177.5 [monetary sanctions not to exceed \$1,500, payable to the court, for disobedience of court orders], 583.410, 583.420(a)(2) [discretionary dismissals for two year delay in prosecution]; Cal. Rules of Ct., rules 3.1340(a), 3.1342.)

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THERE ARE NO TENTATIVES.

The following are the tentative ruling cases calendared before Judge Sarah Birmingham in Department #14:

THERE ARE NO TENTATIVES.

The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25: